

M/s Sanjeevani Cold Storage v. State of U.P.

Allahabad High Court · Division Bench · 3 October 2016 · WRIT - C No. 47918 of 2016 · **Writ dismissed; petitioner relegated to clause 6.5 for bill challenge.**

HEADNOTE

A cold-storage consumer's writ against electricity bills was dismissed. Counsel having stated that an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005 had already been filed, the Division Bench held that dissatisfaction with the correctness of bills is to be pursued under that clause, and granted liberty accordingly.

FACTUAL SUMMARY

M/s Sanjeevani Cold Storage filed a writ in the Allahabad High Court against the State of Uttar Pradesh and two others. Counsel for the petitioner stated that an objection under clause 6.5 of the Electricity Supply Code, 2005 had already been filed. The controversy was the correctness of electricity bills. After hearing both sides, the Division Bench disposed of the petition on 3 October 2016 by sending the consumer to the Code remedy rather than examining the bills in writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed bills; writ vs clause 6.5 remedy

HOLDING

If a consumer is not satisfied with the correctness of electricity bills, the remedy is under clause 6.5 of the Electricity Supply Code, 2005; a writ is dismissed with liberty to pursue that remedy, including where an objection under clause 6.5 has already been filed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILLS

No merits examination; consumer left to clause 6.5. ¶ 1